

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Noemi Martin	Team: Team # 5	CCRB Case #: 201102347	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Saturday, 02/19/2011 3:15 AM	Location of Incident: Lobby of § 87(2)(b)	18 Mo. SOL 8/19/2012	Precinct: 41
Date/Time CV Reported Wed, 02/23/2011 3:49 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 02/23/2011 3:49 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. CPT Philip Rivera	00000	916539	041 PCT
2. POF Herawattie Jeeuth	13760	917102	041 PCT
3. POM Grey Santana	24746	946218	041 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Robert Rodriguez	04745	926013	041 PCT

Officer(s)	Allegation	Investigator Recommendation
A . CPT Philip Rivera	Abuse: Captain Philip Rivera supervised the stop of § 87(2)(b)	A . Exonerated
B . CPT Philip Rivera	Force: Captain Philip Rivera used physical force against § 87(2)(b)	B . Exonerated
C . POM Grey Santana	Force: PO Grey Santana used physical force against § 87(2)(b)	C . Exonerated
D . POF Herawattie Jeeuth	Force: PO Herawattie Jeeuth used physical force against § 87(2)(b)	D . Exonerated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On February 23, 2011, § 87(2)(b) a Spanish speaker, filed this complaint with the CCRB over the phone (encl. 9A-9B).

On February 19, 2011, at approximately 3:15 a.m., officers from the 40th Precinct responded to a noise complaint at § 87(2)(b) in the Bronx. The following allegations resulted:

- **Allegation A-Abuse of Authority:** Captain Philip Rivera supervised the stop of § 87(2)(b) § 87(2)(g) it is recommended that **Allegation A be closed as exonerated.**
- **Allegation B-Force:** Captain Philip Rivera used physical force against § 87(2)(b) § 87(2)(g) it is recommended that **Allegation B be closed as exonerated.**
- **Allegation C-Force:** PO Grey Santana used physical force against § 87(2)(b) § 87(2)(g) it is recommended that **Allegation C be closed as exonerated.**
- **Allegation D-Force:** PO Herawattie Jeeuth used physical force against § 87(2)(b) § 87(2)(l) it is recommended that **Allegation D be closed as exonerated.**
- § 87(2)(g), § 87(4-b)

Results of Investigation

Civilian Statements

Complainant: § 87(2)(b)

- § 87(2)(b) a § 87(2)(b) *Hispanic female*, § 87(2)(b), and has blonde hair and brown eyes. § 87(2)(b)

CCRB Testimony

On February 23, 2011, § 87(2)(b) provided an initial statement to the CCRB (encl. 9A-9B) and on March 11, 2011, she was interviewed at the CCRB (encl. 10A-10F). All of her statements were provided in Spanish and are summarized below.

On February 19, 2011, at approximately 3:15 a.m., § 87(2)(b) was at a friend, § 87(2)(b) birthday party at § 87(2)(b) in the Bronx, with her son, § 87(2)(b) grandson § 87(2)(b) and boyfriend § 87(2)(b). There were approximately 12 people at the party and several of them were drinking alcohol. § 87(2)(b) denied that she consumed any alcohol. § 87(2)(b) denied that the party was loud or that there were any fights or anyone acting disorderly. As the family was exiting the apartment, on their way home, § 87(2)(b) saw a group of approximately 10 uniformed officers entering the lobby. An officer, who § 87(2)(b) described as a Hispanic male, asked § 87(2)(b) what was going on. This investigation identified this officer as Captain Phillip Rivera. Captain Rivera said that they had received a call of a fight at the location. § 87(2)(b) explained to the officers that she did not know anything about a fight, but she was there at a friend's party.

All of a sudden, multiple officers approached § 87(2)(b) and grabbed him for an unknown reason. § 87(2)(b) saw § 87(2)(b) thrown to the ground by two male officers, identified through this investigation as Captain Rivera and PO Grey Santana, and then placed in handcuffs. § 87(2)(b) approached the officers who were on top of her son and yelled out that he was her son and that he had done nothing wrong. § 87(2)(b) came within a couple of feet from the officers, but denied making physical contact with any of them. A female officer, described as a Hispanic female, with a medium-dark complexion, a chubby build, and black hair, told her that she had to step back. This investigation identified this officer as PO Herawattie Jeeuth. § 87(2)(b) continued to ask what was going on and that her son did not do anything, when PO Jeeuth pushed her in the chest using one arm. § 87(2)(b) was then placed in handcuffs and arrested. § 87(2)(b) and § 87(2)(b) were then removed from the scene and placed inside of a marked police van. They were transported to the precinct and § 87(2)(b) was charged with § 87(2)(a) 160.50

Victim: § 87(2)(b)

- § 87(2)(b) a § 87(2)(b) *Hispanic male, is § 87(2)(b) has black hair and brown eyes.* § 87(2)(b)

CCRB Testimony

On March 11, 2011, § 87(2)(b) was interviewed at the CCRB (encl. 11A-11E). § 87(2)(g)

§ 87(2)(b) had approximately three bottles of Coors Light beer at the party, but denied that he was intoxicated. At approximately 3:15 a.m., the family was getting ready to leave, but had to wait for § 87(2)(b) to return from the store. As the family was waiting, § 87(2)(b) stood in the doorway, with the apartment door opened midway. § 87(2)(b) noticed a group of uniformed officers standing outside of the building. There was no one else in the lobby. § 87(2)(b) decided to go back inside of the apartment, because he did not want any problems with the officers. § 87(2)(b) denied that he did anything wrong, but only wanted to avoid trouble.

Someone exited the building and let the officers inside. Approximately 8-10 uniformed officers entered the building. An officer, identified through this investigation as Captain Phillip Rivera, grabbed § 87(2)(b) by his right arm. Captain Rivera pulled § 87(2)(b)'s arm back and § 87(2)(b) turned around and said, "Yo, what are you doing." Captain Rivera did not respond, but tried to get § 87(2)(b) on the ground by sweeping his feet. § 87(2)(b) decided to not resist and let his body go limp. § 87(2)(b) fell on the ground on his stomach, with his hands above his head. § 87(2)(b) felt pressure on his back, but did not know what it was or how many officers may have been on top of him. § 87(2)(b) did not say anything and was then handcuffed. § 87(2)(b) heard his mother ask what was going on and then saw an Indian female officer, identified through this investigation as PO Jeeuth, push her in the chest.

§ 87(2)(b) and § 87(2)(b) were then removed from the scene and placed inside of a marked police van. § 87(2)(b) was charged with § 87(2)(a) 160.50. § 87(2)(b) did not sustain any injuries.

Witness: § 87(2)(b)

- § 87(2)(b) a § 87(2)(b) *Hispanic male, § 87(2)(b) has salt and pepper hair and brown eyes. He is § 87(2)(b)'s boyfriend* § 87(2)(b)

CCRB Testimony

On March 11, 2011, § 87(2)(b) was interviewed at the CCRB by Inv. Hoy (encl. 12A-12D). § 87(2)(b) did not witness the incident and only observed two uniformed officers escorting § 87(2)(b) and § 87(2)(b) out of the building in handcuffs.

NYPD Statements:

Subject Officer: PO GREY SANTANA

- PO Santana, a § 87(2)(b) Hispanic male, § 87(2)(b) has black hair and brown eyes.
- On February 18, 2011, PO Santana worked from 5:30 p.m. to 2:05 a.m. on February 19, 2011. PO Santana was partnered with Sgt. Rodriguez, Captain Rivera, PO Ortiz and PO Aquino. The officers were assigned to conditions team and an unmarked vehicle, in which Sgt. Rodriguez was the operator.

Memo Book (encl. 13A-13B):

- At 3:05 a.m., PO Santana noted that there was a radio run of a dispute at a house party (10-52) at § 87(2)(b) and § 87(2)(b).
- At 3:15 a.m., PO Santana had two persons, identified as § 87(2)(b) and § 87(2)(b) under arrest at § 87(2)(b).

UF-61 and On-Line Booking Sheet (OLBS)

The UF-61 report (encl. 14A-14B) and the OLBS (encl. 15A-15F) indicate that § 87(2)(b) was stopped for ID after the officers responded to radio run of a fight at a house party. § 87(2)(b) became irate and disorderly. He flailed his arms and resisted the arrest. § 87(2)(b) was arrested for interfering with her son's arrest.

CCRB Testimony:

On May 31, 2011, PO Grey Santana of the 41st Precinct was interviewed at the CCRB (encl. 16A-16C). On February 19, 2011, at approximately 3:05 a.m., the officers received a call from Central dispatch reporting a dispute at a house party in the vicinity of § 87(2)(b) and § 87(2)(b). The call did not provide the building number. As the officers drove down § 87(2)(b) the officers noticed several people inside the hallway of building § 87(2)(b). The building door had clear glass windows and they were able to see through it. There was no one outside of the building. The officers parked their vehicle and approach the building. As they walked towards the building, they heard loud music emanating from an apartment on the first floor. Someone opened the door for the officers and they entered the building. PO Santana observed approximately five people in the hallway. There was a male, identified through this investigation as § 87(2)(b) standing in the middle of the hallway. PO Santana approached § 87(2)(b) and asked if he lived in the building. § 87(2)(b) did not say anything and walked away towards the apartment, which was at the rear of the hallway. The apartment door was closed at this time. PO Santana explained that he approached § 87(2)(b) because he was the first person he saw. PO Santana believed that the other officers also approached the other people in the hallway and asked them the same questions.

Captain Rivera followed § 87(2)(b) to the apartment door and asked him for his ID. § 87(2)(b) refused. Captain Rivera asked § 87(2)(b) again for his ID and he replied, "Get the fuck out. Get outta here. I'm not giving you my ID. Get the fuck out." PO Santana and Captain Rivera each asked again for his ID and § 87(2)(b) refused. During this time, an unidentified older Hispanic female opened the apartment door. Captain Rivera asked her to lower the music and she said that

she would. § 87(2)(b) joined in the conversation and said she did not have to do anything and told the officers again to, "Get the fuck out." At this point, PO Santana was going to issue § 87(2)(b) a § 87(2)(a) 160.50 summons. Captain Rivera asked for his ID. Captain Rivera reached for § 87(2)(b)'s arm and § 87(2)(b) tried to walk into the apartment. Captain Rivera grabbed his arm and § 87(2)(b) pulled his arm back. PO Santana did not know if he struck Captain Rivera. Captain Rivera continued to try and grab § 87(2)(b) from behind and a struggle ensued.

Multiple officers, including PO Santana went to assist Captain Rivera. PO Santana saw additional officers from his command at the scene, but did not know if someone called for assistance or if these officers were also responding to the job. PO Santana grabbed hold of § 87(2)(b) by his side and tried to restrain him to place the handcuffs, but § 87(2)(b) kept moving around resisting the arrest. PO Santana did not see another officer use force. PO Santana tripped over a bag that was in the hallway and he and § 87(2)(b) fell to the ground. There were a lot of officers who were pushing back and forth and trying to grab hold of § 87(2)(b) as well. PO Santana did not think any other person fell to the ground and did not see which officers were grabbing onto § 87(2)(b). PO Santana denied that he or another officer threw § 87(2)(b) onto the ground.

During the struggle, an older woman jumped in the middle of the officers and yelled, "Get the fuck off, motherfuckers." § 87(2)(b) was also cursing and still resisting the arrest. The woman, later identified as § 87(2)(b) came within one arm length from the offices and yelled out in Spanish, "I wish someone would kill you fucking cops." Because she was interfering in the arrest, a female officer, identified through this investigation as PO Herawattie Jeeuth, placed her in handcuffs. PO Santana did not see PO Jeeuth push § 87(2)(b) in the chest. The rest for the group was still in the hallway, but there were no other arrests. The pair were removed from the scene and transported to the precinct for processing.

Subject Officer: CAPTAIN PHILLIP RIVERA

- Captain Rivera, a § 87(2)(b) Hispanic male, § 87(2)(b) has brown hair and brown eyes.
- On February 18, 2011, Captain Rivera was scheduled to work from 5:00 p.m. to later in the morning of February 19, 2011. He did not recall what time he went end of tour. Captain Rivera was partnered with Sgt. Rodriguez and PO Santana and they were dressed in uniform and assigned to a marked police vehicle, in which PO Santana was the operator.

Memo Book:

- Captain Rivera is not required to carry a memo book.

CCRB Testimony:

On June 15, 2011, Captain Phillip Rivera of the 41st Precinct was interviewed at the CCRB (encl. 17A-17C). § 87(2)(g):

Captain Rivera saw approximately 7 people congregated in the lobby, talking loudly. The officers knocked on the door of the building and Captain Rivera heard a male voice say, "Don't open the fucking door. They are not coming in here." A woman replied from behind the door, "We are not doing anything wrong, I am opening the door." The woman answered the door and the officers entered the lobby. Once inside, Captain Rivera saw approximately 6 other people off to the right hand side, standing on the steps leading up to the second floor. Captain Rivera was trying to assess the situation, as it appeared that part of the party was in the hallway. Captain Rivera noticed a male, who was later identified as § 87(2)(b) being loud and boisterous. There was also evidence of alcohol consumption in the lobby; empty Corona beer bottles, plastic cups and plastic bags. There was also an odor of alcohol in the air. Because the officers were

responding to a fight involving a male, Captain Rivera suspected that § 87(2)(b) was involved. § 87(2)(b) also appeared to be intoxicated. The officers approached § 87(2)(b) on this suspicion to investigate further.

Captain Rivera instructed PO Santana to get § 87(2)(b)'s ID, while he went to the apartment. Captain Rivera did not recall if anyone else was stopped, but he did instruct the officers to identify who else was present. The apartment door opened and an older Hispanic female came to the door. Captain Rivera told her that they received a call that there was some trouble at the location. Captain Rivera asked her if there were any problems. The woman identified herself as the owner of the apartment and said that an upstairs neighbor was complaining of the noise, but there were no fights at the location. There was a second female standing off to the side at the doorway. This woman was later identified as § 87(2)(b). Captain Rivera could not see into the apartment. Captain Rivera instructed her to lower the music and she seemed compliant to his request.

At this time, § 87(2)(b) tried to walk past Captain Rivera and into the apartment and brushed Captain Rivera's arm. Captain Rivera heard PO Santana say, "Where are you going? I asked you for your identification." § 87(2)(b) replied, "Fuck you." Captain Rivera extended his right arm forward to stop § 87(2)(b) because he decided to issue him a disorderly conduct summons. § 87(2)(b) pulled his hand away and Captain Rivera attempted to grab him by the wrist to pull him out of the apartment. § 87(2)(b) jerked his hand away again and said, "Don't fucking touch me." He did not strike Captain Rivera. PO Santana stepped in to assist and also tried to grab § 87(2)(b). § 87(2)(b) stepped within inches of Captain Rivera's face and yelled, "No." § 87(2)(b) grabbed Captain Rivera's right hand, which was holding onto § 87(2)(b). Captain Rivera managed to pull § 87(2)(b) out into the lobby. § 87(2)(b) positioned herself in between Captain Rivera and PO Santana and § 87(2)(b). PO Santana held onto § 87(2)(b)'s arms and they were tugging back and forth. During this tussle, PO Santana slipped and fell to the ground. Because § 87(2)(b) was standing in between them, she also fell. Captain Rivera let go of § 87(2)(b) because she had a bracelet that cut his right index finger. Captain Rivera did not recall how everyone was positioned on the ground, but he went over to help § 87(2)(b) up. Captain Rivera tried to pick her up by the shoulders, while she continued yelling obscenities at him.

Additional officers responded to the scene after someone called for assistance. Captain Rivera did not know who these officers were, but did recognize one of them as PO Jeeuth. PO Santana and unknown number of officers tried to restrain § 87(2)(b) by trying to grab his arms and hands. § 87(2)(b) kept his hands tucked inside his body and would not give them to the officers. Captain Rivera did not become involved and overheard multiple officers say "Give up your hands." Captain Rivera managed to raise § 87(2)(b) off the ground, when he heard a male from inside of the apartment yelling "You are going to get it. You are going to get it." Captain Rivera became worried that this male would come out of the apartment and instructed him to remain quiet and stay inside the apartment. The male complied. Captain Rivera saw § 87(2)(b) was then handcuffed by PO Santana. Captain Rivera saw Sgt. Rodriguez assisting PO Santana, but could not describe his specific actions.

Captain Rivera denied that officers used additional force against § 87(2)(b). After § 87(2)(b) was stood up, Captain Rivera handed her to another officer, who he did not recall. § 87(2)(b) was arrested for OGA, but he did not see who handcuffed her. Captain Rivera did not see PO Jeeuth interact with § 87(2)(b).

Subject Officer: PO HERAWATTIE JEEUTH

- PO Jeeuth, a § 87(2)(b) Indian female, § 87(2)(b) has black hair and brown eyes.

- On February 19, 2011, PO Jeeuth worked from 11:15 p.m. to 7:50 a.m. with PO Ulich and assigned to robbery auto. The officers were dressed in uniform and assigned to a marked police vehicle, in which PO Jeeuth was the operator.

Memo Book (encl. 18A-18B):

- PO Jeeuth did not have any related entries in her memo book.

CCRB Testimony:

On July 5, 2011, PO Herawattie Jeeuth of the 41st Precinct was interviewed at the CCRB (encl. 19A-19B). § 87(2)(g)

PO Jeeuth and PO Ulich responded to a call of a disorderly group at § 87(2)(b) in the Bronx. Upon arrival, PO Jeeuth observed Captain Rivera and PO Santana attempting to place § 87(2)(b) under arrest. § 87(2)(b) was flailing his arms and pulling them away from the officers. An older female, identified through this investigation as § 87(2)(b) jumped on Captain Rivera's back to prevent him from cuffing § 87(2)(b). PO Jeeuth did not hear or see how Captain Rivera reacted. PO Jeeuth stepped down from the staircase and grabbed § 87(2)(b) by the shoulders and pulled her off Captain Rivera. PO Jeeuth tried to calm her down, but § 87(2)(b) was highly intoxicated. PO Jeeuth handcuffed § 87(2)(b) and decided to remove her from out of the hallway. PO Jeeuth brought § 87(2)(b) outside to the front of the building. PO Jeeuth did not recall specific statements § 87(2)(b) made, but she continued to be belligerent. § 87(2)(b) had glassy eyes, smelled of alcohol and her clothing was disheveled.

After several minutes, PO Santana exited the building with § 87(2)(b). Unknown officers transported § 87(2)(b) and § 87(2)(b) to the stationhouse and PO Jeeuth resumed patrol. PO Jeeuth denied that she ever pushed § 87(2)(b) in the chest. PO Jeeuth was the only female officer on the scene.

Officer Not Interviewed

§ 87(2)(g)

NYPD Documents

SPRINT Report and Communications CD

SPRINT report # § 87(2)(b) (encl. 21A-21B) and the communications CD (encl. 20) are consistent that a call was made in regards to a fight and a disorderly group at the incident location. Officers assigned to sector 41G, robbery auto, and the patrol supervisor responded.

40th Precinct Command Log

The command log (encl. 22) lists the arrest entries for § 87(2)(b). And § 87(2)(b) at 3:20 a.m. on February 19, 2011. Both of their physical and mental conditions are listed as apparently normal.

Arrests for Incident and Disposition

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- Neither § 87(2)(b) nor § 87(2)(b) has filed a Notice of Claim with the City of New York as of July 20, 2011, with regard to the incident (encl. 24).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [illegible]

Civilians CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 8) or § 87(2)(b) (encl. 9).

Subject Officers CCRB History

- Captain Rivera has been a member of the service for 16 years and there are 2 substantiated CCRB allegations against him (encl. 4):
 - In CCRB #9801122, Captain Rivera improperly searched someone and abused his authority. The CCRB Board recommended charges, but the NYPD did not impose any discipline.
- PO Santana has been a member of the service for 3 years and there are no substantiated CCRB allegations against him (encl. 5).
- PO Jeeuth has been a member of the service for 15 years and there are 4 substantiated CCRB allegations against her (encl. 6).
 - In CCRB #200000628, PO Jeeuth improperly stopped, questioned and threatened to arrest someone. The CCRB Board recommended charges, but the NYPD did not impose any discipline.
 - In CCRB #200607397, PO Jeeuth refused to provide her name and/or shield number and abused her authority. The CCRB Board recommended charges and the NYPD imposed command discipline A.

Conclusion

Identification of Subject Officers

- PO Santana was identified as the arresting officer from the arrest report. Police documentation, such as the SPRINT report and the roll call, and the officers' testimonies confirmed that PO Santana, Captain Rivera and PO Jeeuth were involved in this incident.
- Captain Rivera acknowledged his involvement in this incident § 87(2)(g)
- PO Santana and PO Jeeuth also acknowledged their roles in this incident § 87(2)(g)

Investigative Findings and Recommendations

Allegation A-Abuse of Authority: Captain Philip Rivera supervised the stop of § 87(2)(b)

It is undisputed that § 87(2)(b) was stopped under the supervision of Captain Rivera. § 87(2)(b) alleged that he was stopped without cause. § 87(2)(b) testified that upon the officers' arrival, he walked back into the apartment, because he did not want any trouble. § 87(2)(b) however, denied any action that would provoke the officers stopping him. Captain Rivera testified that the officers were responding to a 911 call of a fight between a male and a female at the location. Police documentation, such as the SPRINT report confirmed that a neighbor called in the alleged dispute. Captain Rivera instructed PO Santana to obtain § 87(2)(b) ID and investigate him further because he suspected § 87(2)(b) of being involved in the fight and he appeared to be intoxicated.

NYPD Patrol Guide Section 212-11 (encl. 1A-1B), regarding stop and frisk, states that "an officer can temporarily detain a person for questioning to conduct a criminal investigation when they reasonably suspect the person has committed, is committing or is about to commit a felony or a penal law misdemeanor." § 87(2)(g)

It is therefore recommended that **Allegation A be closed as exonerated.**

Allegation B-Force: Captain Philip Rivera used physical force against § 87(2)(b)

Allegation C-Force: PO Grey Santana used physical force against § 87(2)(b)

It is undisputed that § 87(2)(b) walked away from the officers. § 87(2)(b) alleged that Captain Rivera grabbed his arm and he turned around and questioned Captain Rivera's actions. Captain Rivera then threw him on the ground. § 87(2)(b) was not sure if other officers were involved because he was facing the ground and could not see. § 87(2)(b) admitted to drinking alcohol before the incident, but denied that he was intoxicated. Captain Rivera stated that he grabbed § 87(2)(b)'s arms in attempt to stop him, when he jerked his hand back. PO Santana testified that he grabbed hold of § 87(2)(b)'s side and tried to restrain him. Because § 87(2)(b) continued to move around, PO Santana could not get the handcuffs on him and they both fell to the ground.

NYPD Patrol Guide Section 203-11 (encl. 2A-2C) states that officers can use only that amount of force necessary to overcome resistance to effect an arrest. § 87(2)(g)

It is recommended that **Allegations B and C be closed as exonerated.**

Allegation D-Force: PO Herawattie Jeeuth used physical force against § 87(2)(b)

It is undisputed that § 87(2)(b) interfered with her son's arrest and questioned the officers on their actions. § 87(2)(b) alleged that PO Jeeuth pushed her away from the officers and she was subsequently arrested. While PO Jeeuth denied pushing her, she admitted that she was the officer who grabbed § 87(2)(b) and removed her from the scene after § 87(2)(b) tried to prevent Captain Rivera from handcuffing her son.

§ 87(2)(g)

It is therefore recommended that **Allegation D be closed as exonerated.**

Team: 5

Investigator: _____	Noemi Martin	July 29, 2011
Signature	Print	Date

Supervisor: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date

Reviewer: _____	_____	_____
Title/Signature	Print	Date